

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

4. GABRIEL C. GIAMANCO V. MONIFA A. GIAMANCO

PFL20210240

Order to Show Cause

On January 27, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging 15 violations of custody orders. Respondent was personally served on February 24, 2026. Minor's Counsel was not served.

On April 14, 2026, Respondent filed a Responsive Declaration to Request for Order requesting dismissal of the RFO.

The parties appeared before the court on April 23rd and requested additional time to perfect service. The request was granted and the matter was continued to the present date.

Minor's Counsel was served with the OSC on April 23rd.

Petitioner alleges fifteen violations of custody and visitation orders by Respondent due to failure to produce the minor for custody exchanges.

Respondent asks the court to dismiss the OSC for failure to state facts sufficient to constitute a cause of action and the doctrine of unclean hands.

First and foremost, the OSC is dismissed with prejudice with regard to the missed visits on March 17, 2023, May 12, 2023, and September 25, 2023. Petitioner waited almost three years before filing his OSC for these visits therefore the court finds dismissal of these claims to be in the interests of justice.

Turning to the missed visits from April 10, 2025 through January 15, 2026, Respondent's request for dismissal of these claims is denied. The February 18, 2025 ex parte orders expressly allowed for the minor to decline visits only "pending the review hearing." As of the court's orders on the review hearing, to drop the matter from calendar, the minor was no longer permitted to decline visits.

Respondent argues that no violation occurred because she did encourage the minor to attend visits and Petitioner cannot benefit due to his own unclean hands; however these are affirmative defenses and questions of fact to be addressed at trial.

The parties are ordered to appear for the arraignment on allegations of missed visits from April 10, 2025 through January 15, 2026.

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Request for Order

On February 17, 2026, Minor's Counsel filed a Request for Order (RFO) seeking custody and visitation orders. The matter was originally filed ex parte, therefore the RFO and the ex parte orders were served on February 20th. There is no indication that either the Notice of Tentative Ruling or blank FL-320 was served.

Petitioner filed a Responsive Declaration to Request for Order on February 17th.

The parties attended Child Custody Recommending Counseling (CCRC) on April 15, 2026. They were unable to reach any agreements therefore a report with recommendations was prepared on May 19, 2026. It was mailed to the parties on May 20th.

Minor's Counsel asks the court to revert to its prior orders issued on February 18, 2025 and cease any visitation between the minor and Respondent.

Petitioner opposes the request and asks that the current custody orders remain in place.

After reviewing the filings as outlined above, the court does find the recommendations contained in the May 19, 2026 CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court with the correction of one typo in paragraph 4 of the Parenting Time section. The word "Norman" shall be corrected to read "normal." The remainder of the recommendations are adopted as-is.

Minor's Counsel is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: THE OSC IS DISMISSED WITH PREJUDICE WITH REGARD TO THE MISSED VISITS ON MARCH 17, 2023, MAY 12, 2023, AND SEPTEMBER 25, 2023. THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT ON ALLEGATIONS OF MISSED VISITS FROM APRIL 10, 2025 THROUGH JANUARY 15, 2026.

THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE MAY 19, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE CORRECTION OF ONE TYPO IN PARAGRAPH 4 OF THE PARENTING TIME SECTION. THE WORD "NORMAN" SHALL BE CORRECTED TO READ "NORMAL." THE REMAINDER OF THE RECOMMENDATIONS ARE ADOPTED AS-IS.

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MINOR'S COUNSEL IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.